

Ghaziabad Development Authority vs Redhey Shyam Sharma on 2 August, 2023

NATIONAL CONSUMER DISPUTES REDRESSAL COMMISSION NEW DELHI

REVISION P

BEFORE: HON'BLE DR. INDER JIT SINGH, PRESIDING MEMBER

FOR THE PETITIONER :

MR. SIDDHARTH SENGAR, ADVOCATE

FOR THE RESPONDENT

MR. ADITYA SHARMA, ADVOCATE

Dated : 02 August 2023

ORDER

1. The present Revision Petition (RP) has been filed by the Petitioner against Respondent, as detailed above, under section 58 (1) (b) of Consumer Protection Act 2019, against the order dated 01.09.2021 of the State Consumer Disputes Redressal Commission, Uttar Pradesh (hereinafter referred to as the 'State Commission'), in First Appeal (FA) No.2292 of 2008 in which order dated 07.11.2008 of District Consumer Disputes Redressal Forum Ghaziabad (hereinafter referred to as District Forum) in Consumer Complaint (CC) no 531 of 2002 was challenged, inter alia praying for setting aside the order dated 01.09.2021 of the State Commission.

2. While the Revision Petitioners (hereinafter also referred to as OPs) were Appellants and the Respondents (hereinafter also referred to as Complainant) was Respondent in the said FA No. 2292 of 2008 before the State Commission, the Revision Petitioners were OPs and Respondent was Complainant before the District Forum in the CC no. 531 of 2002. Notice was issued to the Respondent(s) on 21.12.2021. Parties filed Written Arguments/Synopsis on 21.01.2022 and 11.02.2022 respectively.

3. Brief facts of the case, as emerged from the RP, Order of the State Commission, Order of the District Commission and other case records are that Complainant applied for a house in Indirapuram Housing Scheme 1992 of the OPs (scheme Code 615 Aakansha-II) costing Rs.4,00,000/- and in the said scheme, the OP sent a reservation letter and payment schedule to the complainant on 16.04.1992 under which a house was reserved for the Complainant. The Complainant deposited the entire cost of the house with the OP as per the payment schedule. The cost demanded by the OP before delivery of possession was deposited by the complainant with the OP. The OP had mentioned in their brochure and advertisement of the scheme that possession of a fully developed house will be delivered within two years. However, the OP failed to give the possession of fully developed house. The Complainant asked for refund of money with interest since house was semi-constructed wherein development work was not completed. However, the OP assured the complainant that a fully developed house in some other scheme will be given to him under 'Tatkaal Yojna'. As complainant was in urgent need of the house, he promptly gave consent for another house. The OP reserved a house for the complainant in Indirapuram Housing Scheme

604 and letter to this effect was sent to the complainant on 14.03.1994. OP again sent a letter to complainant on 30.04.1994 vid which HIG House No. 148A, Gyan Khand-IV (Double Storey) was allotted in his favour and cost of the said house was communicated to the complainant to be Rs.4,96,000/- and Complainant was asked to pay the balance payment in three instalments. The complainant deposited the balance amount with the OP in time. At the time of allotment of aforesaid house, the OP had promised that possession of house will be delivered soon as it is a fully developed house. Despite paying the entire cost of the house, the OP did not deliver the possession of the house to complainant. The Complainant wrote a letter to the OP and also made oral requests for delivery of possession. The OP informed the complainant that complainant should take the possession of the house as all facilities were available in the house. Complainant alleged that aforesaid house was incomplete and not in habitable condition as there was no electricity, water, road and sewer connection. The OP gave the assurance that complainant should take the possession of the house in existing condition and they will remove all the deficiencies. After taking possession of the aforesaid HIG house, complainant found that there were number of deficiencies and house was not in a habitable condition like all the doors, frames, windows were totally damaged, there was no electricity fitting, wall plaster was in dilapidating condition, there was not sanitary fitting, no draining system, no system for drinking water etc. The complainant informed the OP about the same but in vain. Though the complainant had taken possession of the house on 26.03.1997 but he was informed by the OP on 01.11.1999 i.e. after three years of delivery of possession that cost of aforesaid house had been increased from Rs.4,96,200/- to Rs. 6,28,360/- and complainant should execute registry of the property after depositing Rs.1,32,160/- and Rs.9441/- as lease rent before 15.11.1999. The Complainant raised objection about illegally increasing the cost of the house as possession had been given to him after he had paid its full cost. The complainant also requested the OP to decrease the cost of house but OP did not decrease the cost. The OP sent a notice dated 06.06.2002 to the complainant by which he was asked to deposit Rs.2,15,610/- failing which the allotment will be cancelled. Being aggrieved of the letter no. 773 dated 01.11.99 and letter no. 1694 dated 06.06.2002 sent by the OP, the Complainant filed a CC before the District Forum.

4. Vide Order dated 07.11.2008 the CC no. 531 of 2002 the District Forum allowed the CC and quashed the letter no. 773 dated 01.11.1999 issued by the OP demanding the escalated amount in respect of House No. 148A (HIG) Gyan Khand-IV, Double Storey, Indirapuram and directed the OPs to pay Rs.2000/- to the complainant as compensation and Rs.1000/- as litigation cost. Aggrieved by the said Order dated 07.11.2008 of District Forum, Petitioners appealed in State Commission and the State Commission vide order dated 01.09.2021 in FA No. 2292 of 2008 has dismissed the Appeal of the OP. Hence the OP is before this Commission now in the present RP.

5. Petitioners have challenged the said Order dated 01.09.2021 of the State Commission mainly/inter alia on following grounds:

The Complaint is barred by limitation.

The respondent was aware of the fact that price communicated to him by means of the letter of allotment was tentative, which was revisable and further respondent tendered an undertaking / affidavit to deposit the enhanced cost of the house fixed by the Petitioner and, thereafter, the possession was taken by him and, therefore, the case is not maintainable.

There was no violation of contract and rules as respondent was aware about the estimated / tentative cost via allotment letter.

The respondent is a defaulter and has relied on the order of the Hon'ble Supreme Court in Prashant Kumar Shahi Vs. Ghaziabad Development Authority (2000) 4 SCC 120 and Meerut Development Authority Vs. Uma Khandelwal The State Commission has no jurisdiction to entertain and adjudicate the case and has relied on the cases of this Commission in Kartar Singh Vs. Delhi Development Authority 1 (2008) CJ 93 (NC) and Commissioner Gujarat Housing Board and Anr. Vs. Thakkar Somalal II (1996) CPJ 90 (NC) The Complainant after taking the possession is no longer a consumer and not entitled to raise a consumer dispute and has relied on the order of the NCDRC in Harpal Arya Vs. Housing Board Haryana - II (2016) CPJ 36.

The respondent took the possession of the house without any protest and gave the undertaking to make the payment of the cost of the house.

The enhanced amount was payable in terms of affidavit / undertaking 18.02.1997 and, therefore, District Forum erred in setting aside the demand notice dated 01.11.1999.

6. Heard counsels of both sides. Contentions/pleas of the parties, on various issues raised in the RP, Written Arguments, and Oral Arguments advanced during the hearing, are summed up below.

6.1. Counsel for the Petitioner repeated the points which are stated in para 5, grounds for challenging the order of the State Commission, hence the same are not being repeated here.

6.2 Counsel for the respondent argued that no justification or details were given for the belated additional demand. Despite the full payment made in 1994, the possession was handed over in 1997 i.e. after 2 ½ years of the payment. Counsel for the respondent further argued that affidavit was not taken at the time of allotment or receipt of total price but at the time of offering possession

and right to charge additional amount was only if there was any increase / escalation in price in future. Counsel for the respondent has placed reliance on the order of this Commission in Ghaziabad Development Authority Vs. Vishnu Datt Dimri RP No. 2239 of 1999 and submitted that it was incumbent upon the Authority to immediately hand over possession in the instant allotment scheme, which is based on allotment of ready apartment and Consumer Fora are required to get into the issue of pricing. No escalation could occur after the apartments had already been constructed. The Petitioner has not been able to show that concurrent orders of the fora below suffer from lack of jurisdiction or material irregularity or patent illegality.

7. We have carefully gone through the facts and circumstances of the case, orders of the State Commission and District Forum, other case records and rival contentions of the parties. In this case, there are concurrent findings of both the Foras below. State Commission has observed that amount demanded by the Appellant (Petitioner herein) has already been deposited before the delivery of possession. After delivery of possession no further demand can be issued, the additional demand was sent after more than two years of delivery of possession, delivery of possession is the last step of handing over the possession and it may be either before the registration of sale deed or after the registration of sale deed. The State Commission has given a well reasoned order and we find no reasons to interfere with it. District Forum has given reasons for Complainant not being entitled to any compensation for shortcomings / deficiencies in the house as he did not point out any such deficiency at the time of taking possession. However, with regard to increased demand vide letter dated 01.11.1999, District Forum after recording detailed reasons, has stated that it amounts to unfair trade practice on the part of OP. Order of District Forum quashing the letter dated 01.11.1999 is a well reasoned order and State Commission was right in upholding the same. As was held by the Hon'ble Supreme Court in Rubi Chandra Dutta Vs. United India Insurance Co. Ltd. [(2011) 11 SCC 269], the scope in a Revision Petition is limited. Such powers can be exercised only if there is some prima facie jurisdictional error appearing in the impugned order. In Sunil Kumar Maity Vs. State Bank of India & Ors. [AIR (2022) SC 577], the Hon'ble Supreme Court held that "the revisional jurisdiction of the National Commission under Section 21(b) of the said Act is extremely limited. It should be exercised only in case as contemplated within the parameters specified in the said provision, namely when it appears to the National Commission that the State Commission had exercised a jurisdiction not vested in it by law, or had failed to exercise jurisdiction so vested, or had acted in the exercise of its jurisdiction illegally or with material irregularity." We find no infirmity or material irregularity or jurisdictional error in the orders of the State Commission, hence the same is upheld.

8. For the reasons stated hereinabove, and after giving a thoughtful consideration to the entire facts and circumstances of the case, various pleas raised by the learned Counsel for the Parties, the RP is dismissed.

9. Parties to bear their respective costs.
10. The pending IAs in the case, if any, also stand disposed off.

..... DR. INDER JIT SINGH PRESIDING MEMBER